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Executive Order

ESTABLISHING RULES GOVERNING NAVIGATION OF THE PANAMA CANAL AND ADJACENT WATERS

By virtue of the authority vested in me by law, and in conformity with Article VII of the Panama Canal Treaty between the United States of America and the Republic of Panama, dated November 18, 1903, I hereby establish the following Rules for governing navigation of the Panama Canal and adjacent waters and for the exclusion of persons from the Canal Zone, and the following Maritime Quarantine Rules for the Canal Zone and harbors of Panama and Colon, Republic of Panama, and on vessels present in those waters and harbors; and all previous rules and regulations concerning transit and harbors, maritime quarantine, exclusion of undesirables, exclusion of Chinese, steamboat inspection service, and customs service are hereby repealed.

CHAPTER I

GENERAL

RULE 1. *Effective Date:* These Rules shall take effect on January 1, 1926.

RULE 2. *Penalty for Violation:* Except where other penalties are herein prescribed, the penalty for violating any of the provisions of these Rules shall be a fine not exceeding one hundred dollars ($100.00), or imprisonment in jail not exceeding thirty (30) days, or both such fine and imprisonment.

RULE 3. *Denial of Passage:* The Canal authorities may deny any vessel passage through the Canal when the character or condition of the cargo, hull or machinery is such as to endanger the structures pertaining to the Canal, or which might render the vessel liable to obstruct the Canal.

RULE 4. *Temporary Holding of Vessels:* The Canal authorities may hold a vessel for the purpose of investigating any claims or disputes that may arise or any charge of violation of the laws of the Canal Zone or the United States or of the Rules herein prescribed or such regulations additional thereto as may be prescribed by the Governor of The Panama Canal. A vessel may also be held until it has, in the opinion of the Canal authorities, been put into condition as to equipment and cargo to make it safe for the passage through the Canal. No claim for damages shall be admitted because of such temporary holding of vessels.

RULE 5. *Order of Dispatch of Vessels:* The Canal authorities may dispatch vessels through the Canal in any order and at any time they may see fit. Priority of arrival at a terminal does not give any vessel the right to pass through the Canal ahead of another that may arrive later, although this will be a consideration in determining the order of passage.

RULE 6. *Discharge of Firearms:* No firearms of any kind shall be discharged from vessels while in Canal zone waters, except that authorized salutes by vessels of war at the Ports of Cristobal and Balboa will be permitted.

RULE 7. *Administering Oaths:* Members of the Board of Local Inspectors, Customs Officers, Quarantine Officers, and Admeasurers, appointed by the Governor of The Panama Canal, are hereby authorized to administer oaths for the purpose of certifying the correctness of official papers, and to witnesses appearing before them in their official capacity.

RULE 8. *Summoning Witnesses:* Members of the Board of Local Inspectors, Customs Officers, Quarantine Offi ers, and Admeasurers are hereby authorized to summon witnesses to testify in matters within the jurisdiction of said officials, and to require the production of books and papers necessary thereto. The District Court of the Canal Zone is hereby authorized to issue processes, at the request of the designated Canal officials, to compel the attendance of witnesses and the production of books and papers, and to punish for contempt of court any who refuse to

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obey such processes, to be sworn, or to answer any material or proper question after being duly sworn.

RULE 9. *Authority of the Governor of The Panama Canal:* The Rules herein established shall be executed under the direction of the Governor of The Panama Canal, hereinafter designated as the Governor, and he is hereby authorized to appoint all officials provided for in these Rules; to assign the execution of these Rules to such officials of The Panama Canal or Panama Railroad Company as he may find desirable; to prescribe such regulations as may be necessary to make effective the Rules herein established; and to fix the charges for all services provided for in these Rules, and for such other services as may be performed for vessels by The Panama Canal or the Panama Railroad Company.

CHAPTER II

ARRIVING AND DEPARTING VESSELS

RULE 10. *Boarding Party for Arriving Vessels:* Incoming vessels will be boarded inside the Atlantic Breakwater or off the seaward edge of the dredged channel at the Pacific entrance by a boarding party, consisting of such persons as may be authorized by the Governor. Vessels arriving between sunrise and ten P. M. will be boarded upon arrival, and those arriving after ten P. M. will be boarded at sunrise the following morning. For a vessel boarded between sunset and ten P. M. a charge will be made for quarantine inspection at rates fixed by the Governor, and such boarding and inspection will be made unless specific request to the contrary is made by the vessel or its agents prior to its being sighted. For a vessel which is arriving for the first time in Canal Zone waters the night boarding and inspection may be declined subsequently to its being sighted, provided that such vessel has no designated agent in the Canal Zone or Republic of Panama.

RULE 11. When a vessel is not boarded immediately on arrival, it shall anchor and await the boarding party, in the anchorage area designated by the Governor.

RULE 12. *Papers Required by Boarding Party:* On arrival, there shall be ready for immediate delivery to the boarding party, for inspection or delivery, as the case may be, such papers, and numbers of copies of each, concerning tonnage of vessel, cargo, persons on board, health conditions, pratique, and such other matters upon which information is necessary, as may be prescribed by the Governor. The required manifests, lists and statements shall be sworn to by the master or agent of the vessel. Failure to have the prescribed papers upon arrival will subject the vessel to delay, but not to fine.

RULE 13. *Clearance and Bill of Health:* Outgoing vessels will be cleared by the Port Captain, or such other officer of The Panama Canal as may be designated by the Governor, but he will issue clearance only after he has ascertained that all documents and statistical data required by the Canal authorities in regard to vessel, cargo and passengers have been furnished; that all tolls and other bills for services and supplies furnished by The Panama Canal or the Panama Railroad Company have been paid, or their payment has been secured; and that the vessel has complied with the quarantine, customs and exclusion laws, rules, and regulations of the Canal, and the laws, rules, and regulations governing the shipping, discharging and protection of seamen.

CHAPTER III

ADMEASUREMENT AND TOLLS

RULE 14. *Admeasuring of Vessels:* The rules for the admeasuring of vessels are fixed by a proclamation of the President of the United States, in accordance with the law. Vessels desiring to transit the Canal shall provide themselves with the proper tonnage certificate based upon such rules.

RULE 15. Admeasurement may be made and the required certificate issued by the admeasurers of the Canal, by Collectors of Customs in the larger seaports of the United States, and by certain properly designated officials abroad. Each transiting vessel should be provided with a full set of plans and a copy of the measurements which were made at the time of issue of its national tonnage certificate, as well as the tonnage certificate itself. The Canal authorities shall have the right to check and correct any measurement made or certificate issued elsewhere.

RULE 16. *Tolls for Vessels in Ballast:* In order for a vessel to benefit by the reduced rate of toll charges for "in ballast without passengers or cargo," it must not have on board fuel in excess of the volume deducted on its Panama Canal Tonnage Certificates for bunker space.

RULE 17. *Tolls for Vessels Transiting for Repairs:* A vessel will be permitted, without payment of tolls, to transit the Canal from the Atlantic and to Balboa and return, for the sole purpose of having repairs made at the Balboa drydock and shops; but such vessel shall pay the charges for pilotage, towage, and other services rendered in connection with the transit.

RULE 18. *Tolls for Vessels Passing into Gatun Lake and Back through Same Locks:* A vessel will be permitted to enter Gatun Lake from either end of the Canal and, without passing through the locks at the other end, return to original point of entry to the Canal, upon payment of the prescribed tolls for a single passage through the Canal. If such vessel carry cargo or passengers either in entering or departing from the Lake, the tolls for a loaded vessel shall be collected.

RULE 19. *To Whom Tolls Are To Be Paid:* Payment for tolls shall be made to the Collector or Deputy Collector of The Panama Canal, or by deposit with the Treasurer of the United States, any Federal Reserve Bank, or other United States Depositories designated by the Secretary of the Treasury, such deposits to be made to the official credit of the Collector of The Panama Canal.

RULE 20. *Payment before Transit:* Payment of tolls in full shall be made, or secured as provided in Rules 23 and 24, before a vessel is allowed to enter a lock.

RULE 21. *Commercial Vessels Operated by the United States:* The rule for payment of tolls prior to transit shall not apply to vessels operated by the Government of the United States; and bills for tolls and other charges against such vessels shall be settled as are other bills between departments of the Federal Government.

RULE 22. *Tolls Payment in Cash:* All payments shall be made in lawful money of the United States, except as provided by Rules 23 and 24.

RULE 23. *Tolls Payment by Drafts Secured by Bonds:* Drafts upon banks of the United States which are supervised by the Comptroller of the Currency, and which are otherwise known to be satisfactory to the Canal authorities, will be accepted when covered by high grade bonds deposited with the Collector of The Panama Canal, and under the following conditions: (a) Bonds will be accepted only from steamship companies having frequent sailings through the Canal, or from agents representing several vessels or steamship companies; (b) bonds of the United States, the Philippine Islands, Porto Rico, and the District of Columbia will be accepted at par value; (c) unless otherwise prescribed by the Governor, bonds of the Territory of Hawaii, the Philippine Railway Company, and those of states, municipalities, and high grade railroads, such as are legal investments for savings banks in the States of New York, Massachusetts, Connecticut and New Jersey, will be accepted at ninety per cent. of their market value, but not exceeding ninety per cent. of their par value; (d) the Canal authorities may refuse to accept coupon bonds, to limit the exchange of bonds by depositors, and to prescribe the total value of the bonds to be deposited by any one agency or company.

RULE 24. *Lump Sum Deposits:* Steamship companies or agencies may make deposits, to the official credit of the Collector of The Panama Canal, with the Treasurer of the United States, any Federal Reserve Bank, or other United States Depository designated by the Secretary of the Treasury, to cover payment of tolls and other charges. The Treasurer, Federal Reserve Bank, or Depository receiving such deposit will forward a copy of the receipt direct to the Collector of The Panama Canal, and such receipt will specify the vessel or vessels for which the deposit is made. When requested by the depositor, cable notice will be sent to the Canal authorities. If the depositor desires, the Canal authorities will cable an acknowledgment of the receipt of notice of deposit. An amount sufficient to cover the cost of sending cable notices will be charged against the deposit.

RULE 25. *Payment of Other Charges:* All charges for services and supplies furnished by The Panama Canal or Panama Railroad Company shall be paid, or the payment thereof fully secured, before clearance is given to a vessel at the port of departure from the Canal Zone.

CHAPTER IV

PILOTS

RULE 26. *Pilots Required:* Except when exempted by the Governor, no vessel shall pass through the Canal, enter or leave a terminal port, or maneuver within Canal Zone waters without having a Panama Canal pilot on board.

RULE 27. *Pilotage Charges:* Pilotage for vessels in transit through the Canal is free; but should any vessel, while in Canal waters, discharge or receive freight or passengers, or remain for the purpose of effecting repairs, or make either terminal a port of call, such vessel shall be liable for the port pilotage charge.

RULE 28. *Vessels in Distress:* A vessel in danger or distress is not prohibited from entering a terminal port at any time; but such vessel should, when practicable, give due notice in advance, by radio or otherwise, and obtain a pilot, if possible. Such vessel shall, except in an emergency, anchor in the anchorage area designated by the Governor.

RULE 29. *Pilotage beyond the Atlantic Breakwaters:* Should a vessel desire a pilot to meet it outside the Atlantic Breakwaters, such vessel will remain there and make signal to that effect.

RULE 30. *Responsibility of Pilot:* The pilot is to be considered on board solely in an advisory capacity, but the master of a vessel must obey all the rules and regulations of the Canal as interpreted by the pilot. The pilot shall be consulted freely at all times, to insure safety in navigation, and no master, officer, nor other person connected with the vessel shall give or cause to be given any order concerning the movement of the vessel without the knowledge of the pilot, or against his advice. In case the master, officer, or other person connected with the vessel disregards or fails to obtain the advice of the pilot and an accident occurs which damages his own or another vessel or Canal property of any kind, or endangers or blocks the Canal, he will be held strictly responsible; and the vessel itself may be held by legal process until settlement in full shall have been made to cover any loss or damage that may have resulted in consequence thereof.

CHAPTER V

REQUIREMENTS CONCERNING OFFICERS, CREW, EQUIPMENT, AND PASSENGERS

RULE 31. *Vessels to be Fully Manned:* Each vessel navigating the waters of the Canal Zone shall be sufficiently manned in officers and crew for the safe handling of the vessel; and the Governor may deny transit of the Canal, or clearance papers for departure from either of the Canal Zone ports, to any vessel which, in his opinion, is insufficiently manned as to officers and crew.

RULE 32. *Discharge of Members of Crews:* No member of the crew of any vessel shall be discharged in the Canal Zone except with the permission of the Canal authorities.

RULE 33. *Officers to be on Duty:* When a vessel is entering or leaving a lock, getting under way, anchoring, shifting berth, or is under way in Gaillard Cut, the master shall be on the bridge and all other officers shall be at their regular stations. Deck officers shall, in addition, remain at their stations while the vessel is in the locks.

RULE 34. In addition to the regular engineer officer of the watch, the chief engineer of a vessel shall remain on duty in the engine room during the approach to and while passing through the locks, and until the lockage shall have been completed and the vessel is clear of the lock walls. He shall also be in the engine room when the vessel is passing through Gaillard Cut, and when getting under way, anchoring or shifting berth. A full head of steam shall be maintained on such occasions.

RULE 35. At other times when a vessel is moving in Canal Zone waters, the master of the vessel, or his qualified representative, shall be present at all times on the bridge, to keep the pilot informed in regard to the individual peculiarities in the handling of the vessel, so that the pilot may be better able to give advice in regard to safely navigating it.

RULE 36. *Crew on Watch:* When under way in Canal Zone waters, when in a lock, or when moored temporarily in transit through the Canal, a vessel shall

keep a full watch on deck and in the engine room. When anchored, moored, or lying at wharf in Canal Zone waters, a vessel shall at all times have on board a sufficient number of men to take care of it.

RULE 37. *Unauthorized Persons on the Bridge:* While a vessel is under way in Canal waters, no one shall be allowed on the bridge or in the pilot house except the pilot and other representatives of the Canal, and the master and such officers and crew of the vessel as may be necessary for its management, direction and safety.

RULE 38. *Injury to Passengers:* The master and officers of a vessel shall require all passengers and all other persons not engaged in working the vessel to keep well clear of lines, bitts, chocks, winches and other gear being used in connection with the lockage. The Panama Canal shall not be responsible for any injury caused to a passenger or other person when such injury has resulted from the non-observance of this Rule.

RULE 39. *Boarding Vessels in Transit:* While transiting the Canal no vessel shall take on board any person except the officers, agents, owners and crew of such vessel, and such other persons as may be authorized to board the vessel by the Canal authorities.

RULE 40. *Boarding Vessels at the Locks:* Except when specially authorized by the Canal authorities, no person shall embark upon or disembark from a vessel while it is in a lock. The Governor is hereby authorized to prescribe regulations under which permits for embarking or disembarking at the locks may be issued, but such permits shall be granted only with the express understanding that The Panama Canal will not be responsible for any injuries to persons or damage to vessels which may result from the exercise of this privilege.

RULE 41. *Towing Lines, Mooring Lines, Chocks, and Bitts:* Vessels are towed through the locks by electric locomotives, using steel wire towing lines, and the Governor is hereby authorized to prescribe regulations as to the number of such locomotives required for vessels of different sizes; as to what type of chocks and bitts are required to be installed upon vessels before they are permitted to enter the Canal; and as to the number of Canal deck hands to be placed on board vessels to assist crews in handling towing lines at locks.

RULE 42. A vessel shall keep at least one boat ready for lowering, for the purpose of handling lines.

RULE 43. *Disabling Engines:* Except when specifically authorized by the Canal authorities, no vessel at any dock or mooring within Canal Zone waters shall have its engines disabled or otherwise be rendered inoperative.

RULE 44. *Vessels at Fuel Berths:* A vessel at a fuel berth shall keep up steam and be ready to move on short notice unless special authority to the contrary has been obtained from the Canal authorities.

RULE 45. *Protection against Fire:* A vessel lying at any wharf in the Canal Zone shall at all times keep a satisfactory watch for fire and have suitable fire fighting apparatus ready for immediate use.

CHAPTER VI

NAVIGATION IN CANAL AND HARBORS

Rule 46 Superseded by E.O. 9562 June 4, 1945

RULE 46. *Subsistence to be Furnished:* Pilots, extra deck hands, and other authorized persons on duty belonging to the Canal service shall be subsisted without charge while on board a vessel in transit through the Canal.

RULE 47. *Vessels Not to Anchor in Canal:* Except in designated localities in Gatun Lake, no vessel shall anchor in any part of the Canal except in an emergency.

RULE 48. Fishing boats shall not anchor nor draw nets nor trawls in the Canal prism, nor elsewhere in the navigable waters of the Canal Zone, unless authorized by the Governor.

RULE 49. *Navigating in Gaillard Cut:* Other than vessels transiting the Canal, no floating craft shall navigate in Gaillard Cut unless authorized to do so by the Governor.

RULE 50. *Sailing Craft and Disabled Vessels:* A vessel whose machinery is disabled, or a vessel without motive power, must be towed through the Canal, for which the tug service is chargeable to the vessel. Such vessels, upon arrival, shall anchor in the anchorage area designated by the Governor, and there wait for a tug.

RULE 51. The master of a vessel which steers badly, or which is liable to become unmanageable for any reason, shall report such fact and request the service of a tug to assist the vessel through the Canal. Such report and request may be made through the pilot or by radio to the Port Captain. The Canal authorities may require any vessel to take a tug through the Cut, in the approaches to the locks, or in any other part of the Canal, when, in their opinion, it may be necessary to insure the safety of the vessel or of the Canal. The tug service in any of these cases is chargeable to the vessel.

RULE 52. If any defect in a vessel be discovered during transit, of such a serious nature that it might interfere with further passage, the vessel shall stop, and, if practicable, be anchored or moored at the first available place. A full report shall immediately be made to the Port Captain, by radio, or by the best means available.

RULE 53. *Passing through Locks:* Vessels passing through the locks shall habitually be handled by electric towing locomotives; except that, a small vessel may be permitted to pass through the locks under its own motive power, in which case the use of the engines while in the locks shall be under the direction of the pilot, or of the lockmaster if there is no pilot on board. After cables from the towing locomotives have been placed aboard, a vessel's main engines may be used, when considered necessary by the pilot, to assist in starting ahead. The main engines shall not be used in any other way while in the locks, except to stop a vessel in an emergency where the towing locomotives are unable to effect a stoppage.

RULE 54. *Authorized Speed of Transit:* The following speeds shall not be exceeded by vessels in transit through the Canal:

Cristobal to Gatun Locks,	6 knots
Gatun Lake in the 1,000-foot channels,	15 "
Gatun Lake in the 800-foot channels,	12 "
Gatun Lake in the 500-foot channels,	10 "
Rounding Bohio and Darien bends,	6 "
Gaillard Cut,	6 "
In or near a lock,	2 "
Miraflores Locks to Pacific Entrance,	6 "
Entering or leaving either Canal port,	6 "
Miraflores Lake, Speed such as to cross the Lake in not less than 15 minutes for vessels not more than 360 feet in length and 20 feet draft; for larger vessels, not less than 20 minutes; and for vessels of exceptional size or displacement, not less than 25 minutes.	

RULE 55. *Vessels Meeting in Canal:* In the Canal, vessels meeting shall pass to the port side of each other, unless there be some special reason to the contrary and passing to starboard is authorized by the Canal pilots. When two vessels sight each other in a Canal channel less than 800 feet wide they shall, when about a mile apart, reduce speed and proceed cautiously until they have passed and cleared.

RULE 56. *Vessels Rounding Bends:* A vessel when approaching any bend of the Canal beyond which there is not a clear view shall, when about one-half a mile from such bend, slow down and blow one prolonged blast, as notification to any vessel which may be coming from the opposite direction. If there be no reply, the vessel may proceed; but if a reply is made, both of the vessels concerned shall stop their engines and then proceed cautiously. They shall not pass each other in the turn of the bend, and the vessel which has the convex bend on its port shall have the right to first proceed and make the turn.

RULE 57. *Overtaking Vessels:* Vessels proceeding in the same direction, other than Canal craft, shall not pass each other in the Canal, except in Gatun Lake between points designated by the Governor, and then only on advice of the pilot to do so. The overtaking vessel, except when there are special reasons to the contrary, shall pass to the port side of the vessel ahead. The vessel ahead shall not attempt to cross the bow or crowd upon the course of the overtaking vessel.

RULE 58. *Navigating in Fog, Mist, or Heavy Rain Storm:* In thick and foggy weather vessels will not be allowed to enter the Canal or to leave the locks, mooring

stations, or wharves until the weather has cleared. A vessel under way, when overtaken by thick or foggy weather, or rain so dense as to obscure the vision, shall immediately take every precaution necessary for safety and anchor or moor at the first available place. The anchoring or mooring shall be done under the advice of the pilot and the vessel shall remain at such anchorage or mooring until the weather clears. Full report shall immediately be made of such occurrence to the Port Captain by radio, or by the best means available.

RULE 59. *Vessels Passing Canal Equipment at Work:* Panama Canal floating equipment at work in a stationary position in the Canal prism shall have the prior right to such position; and it shall be unlawful for a passing vessel to foul such equipment, or its moorings, in any way whatever.

RULE 60. Floating equipment of the Canal from which divers are working, and a vessel under repair and in such condition that a high wash would endanger swamping it or be hazardous to the workmen, must be passed by all vessels at a speed sufficiently slow that a dangerous wash or wake shall not be caused. Such divers' craft or vessel under repair will display a red flag during the day, and a red light at night, as high upon such craft as may be practicable.

RULE 61. The Governor is hereby authorized to prescribe the day marks and night lights for all Canal floating equipment when at work on station in the navigable channels of the Canal Zone, the signals to be given by vessels desiring to pass such equipment, and the signals to be given by the Canal equipment to authorize the vessels to pass. A vessel failing to give the prescribed signals, or disregarding such signals, and causing damage thereby to Canal equipment shall be liable therefor, and proceedings against the vessel at fault will be taken in the District Court of the Canal Zone.

RULE 62. *Use of Search Lights:* No vessel shall use a search light for navigating purposes in Canal Zone waters; and under no circumstances shall the rays of a search light be directed toward the pilot house or navigating bridge of another vessel.

RULE 63. *Lights for Self-Propelled Vessels 65 Feet or More in Length:* Self-propelled vessels of 65 feet or more in length, when under way, shall carry the following lights:

(a) Side Lights: On the starboard side, a green light, and on the port side, a red light, each so placed and screened as to show an unbroken light over an arc of the horizon from right ahead to two points of the compass abaft the beam on starboard and port sides, respectively, and so that neither side light can be seen across the bow from the opposite direction. These lights shall be of such power as to be visible at a distance of at least two miles.

(b) Masthead Light: On or in front of the foremast, or, if the vessel has no foremast, then in the fore part of the vessel, a bright white light, so placed and screened as to show ahead an unbroken light over an arc of the horizon of 20 points of the compass, 10 points on each side of the fore and aft line of the vessel, and of such power as to be visible at a distance of at least five miles.

(c) Range Light: An additional white light fixed astern of, in fore and aft line with, and at least 15 feet higher than the masthead light, the difference in elevation of these two lights always being less than their horizontal distance apart. This light shall be of the same construction and character and show over the same arc of the horizon as prescribed for the masthead light.

(d) Stern Light: A white light, so placed and screened as to show astern over an unbroken arc of the horizon of 12 points of the compass, six points on each side of the fore and aft line of the vessel; fixed at a height about the same as that of the side lights; and of such power as to be visible at a distance of at least one mile.

RULE 64. *Lights for Self-Propelled Vessels from 26 Feet to 65 Feet in Length:* Self-propelled vessels of this class shall carry, when under way, the following lights:

(a) Side Lights: On the starboard side, a green light, and on the port side, a red light, each so placed and screened as to show an unbroken light over an arc of the horizon from straight ahead to two points abaft the beam on the starboard and port sides, respectively, and so that neither side light can be seen across the bow from the opposite direction. The glasses or lenses in these

lights shall be fresnel or fluted, and have an area of not less than 25 square inches each for vessels 40 to 65 feet in length, and of not less than 16 square inches each for vessels of 26 to 40 feet in length.

(b) Forward Light: A bright white light in the fore part of the vessel, as near the stem as practicable, so placed and screened as to show ahead an unbroken light over an arc of the horizon of 20 points of the compass, 10 points on each side of the fore and aft line of the vessel. The glass or lens of this light shall be fresnel or fluted, and have an area of not less than 31 square inches for vessels 40 to 65 feet in length, and not less than 19 square inches for vessels 26 to 40 feet in length.

(c) After Light: A bright white light aft to show all around the horizon, and to be visible for a distance of at least one mile.

RULE 65. *Lights for Motor Boats Less than 26 Feet in Length:* This class of vessels shall carry, when under way, the following lights:

(a) Side Light: A combined lantern in the fore part of the vessel, fixed lower than the after light, showing green to starboard and red to port, so constructed and placed as to show each light from straight ahead to two points abaft the beam on either side, and of a power to be visible at a distance of at least one mile.

(b) After Light: A white light aft, to show all around the horizon, and to be visible for a distance of at least one mile.

RULE 66. *Lights for Sailing Vessels:* A sailing vessel when under way shall carry the side lights but not the white lights prescribed by the preceding Rules for self-propelled vessels of the same length. A sailing vessel being overtaken by another vessel shall show from its stern to the overtaking vessel a white light or flare-up light, of such power as to be visible at a distance of at least a mile. When, for sailing vessels of 30 feet length or under, the green and red lights can not be kept in position because of rough water, these shall be kept at hand, lighted and ready for use, and shall, when another vessel is seen to be approaching, be exhibited to the approaching vessel on their respective sides, so as to show as nearly as practicable the green light from directly forward to two points abaft the beam on the starboard, and the red light over a similar arc on the port side.

RULE 67. *Lights for Vessels Equipped with Both Sail and Power Propulsion:* A vessel equipped with both sail and power propulsion shall, when being propelled by sail alone, be lighted as prescribed for sailing vessels; and, when being propelled by power and sail combined, or power alone, shall be lighted as for self-propelled vessels.

RULE 68. *Lights for Towing Vessels:* Any vessel engaged in towing other craft shall carry the side lights prescribed by the preceding rules for vessels of its length; and in lieu of the white lights prescribed in such rules the vessel shall carry on or in front of the foremast, or, if the vessel has no foremast, then in the fore part of the vessel, two bright white lights in a vertical line one above the other and not less than three feet apart; and an additional white light three feet above or below the other two if a second vessel is being towed and the total length of the tow from the stern of the towing vessel exceeds six hundred feet. Each of these white lights shall be of the same construction and power and shall show over the same arc of the horizon as the light prescribed by Rule 63 (b). The towing vessel may also carry a small white light abaft the funnel or after mast, or at the stern, for the towed vessel to steer by, but such light shall not be visible forward of the beam.

RULE 69. *Lights for Vessels being Towed:* (a) Self-propelled vessels and sailing vessels, when being towed, shall carry the side lights but not the white lights prescribed by the preceding Rules. If towed alongside the towing vessel, the vessel being towed shall also display a bright white light on the outer bow and another on the outer stern. (b) Tows made up of barges, scows, etc., when being towed by a hawser in tandem, shall each carry a white light on the bow and another on the stern; and when such tow is made up of two or more craft abreast a white light shall be carried on each corner of such tow. Tows made up of barges, scows, etc., when towed alongside the towing vessel, shall display a white light on the outer bow and another on the outer stern. The white lights required under (a) and (b) of this Rule shall be of such power and so placed as to be visible for at least one mile.

RULE 70. *Lights for Fishing Vessels:* When under way fishing vessels shall carry the lights prescribed by the preceding Rules for vessels of their class; and when drifting with fishing lines out, or when drawing nets or trawls when under way, shall carry in some part of the vessel where they can best be seen a red and white light, each of such power and so placed as to be visible all around the horizon for a distance of at least one mile. The red light shall be above the white light, and at a vertical distance of between six and twelve feet from it; and the horizontal distance between them, if any, shall not exceed ten feet.

RULE 71. *Lights for Row Boats, etc.:* Row boats and cayucas, whether under oars or sail, shall carry a white light of such power and so placed as to be visible all around the horizon at a distance of at least one mile.

RULE 72. *Lights for Rafts:* Rafts, whether at anchor, being towed, or drifting, shall carry one white light at each corner, of such power and so placed as to be visible all around the horizon for a distance of at least one mile.

RULE 73. *Day and Night Signals for Dangerous Cargo:* All vessels having a specially dangerous cargo, such as explosives or oils of any kind, shall fly a red flag at the masthead by day and show a red light at night visible all around the horizon at a distance of at least one mile.

RULE 74. *Night and Day Marks for Vessels at Anchor:* A vessel 150 feet in length when at anchor shall carry forward where it can best be seen a white light at a height not exceeding 20 feet above the hull; and a vessel of 150 feet or more in length shall carry forward at a height between 20 and 40 feet above the hull a white light and another at or near the stern of the vessel not less than 15 feet lower than the forward light. These white lights shall be of such power and so placed as to be visible all around the horizon for a distance of at least one mile.

RULE 75. A self-propelled vessel at anchor shall display by day, forward where it can best be seen, one black ball not less than two feet in diameter.

RULE 76. *Time of Display of Lights:* The lights prescribed by the preceding Rules shall be displayed between sunset and sunrise, and during such time no other lights which may be mistaken for those prescribed shall be exhibited.

RULE 77. *Definition of "Visible":* The word "visible" in these Rules, when applied to lights, shall mean visible on a dark night with clear atmosphere.

RULE 78. *Night and Day Signals of Distress:* When a vessel is in distress and requires assistance, the following signals may be used, either together or separately: Flames, as from a burning tar barrel, oil barrel, etc.; a continuous sounding with whistle or fog horn; repeated firing of a gun; rockets or shells showing stars, fired one at a time at short intervals. In connection with these, a vessel may use the international code distress signals.

RULE 79. *Signal to Atttract Attention:* Any vessel may, if necessary in order to attract attention, use a flare-up light, or any detonating signal that can not be mistaken for a distress signal.

RULE 80. *Sounding Signal Devices:* Self-propelled and sailing vessels navigating the waters of the Canal Zone shall be provided with efficient signal devices as follows: (a) Self-propelled vessels over 65 feet in length, a whistle or siren, sounded by steam or some substitute for steam, so placed that the sound can not be intercepted by any obstruction; (b) self-propelled vessels under 65 feet in length, a whistle or other mechanical sound-producing device, capable of making a blast of at least two seconds' duration; (c) sailing vessels over 30 feet in length, a fog horn. Vessels of these classes shall each be equipped also with an efficient fog bell.

RULE 81. *Short and Prolonged Blasts:* A short blast of the whistle shall mean a blast of about one second's duration, and a prolonged blast of the whistle shall mean a blast of from four to six seconds' duration.

RULE 82. *Whistle Signals:* The following whistle signals shall be used by vessels navigating the waters of the Canal Zone:

(a) One short blast to signify intention of or assent to the vessel first giving the signal to direct its course to its own starboard, except when two vessels are approaching each other at right angles or obliquely, when it signifies the intention of the vessel which is to the starboard of the other to hold course and speed.

(b) Two short blasts of the whistle to signify intention of or assent to the first vessel giving the signal to direct its course to its own port, except when two vessels are approaching each other at right angles or obliquely, when the signal signifies desire of or assent to vessel which is to the port of the other to cross the bow of the vessel to the starboard.

(c) Three short blasts of the whistle to signify "My engines are going full speed astern."

(d) Four or more short and rapid blasts of the whistle to signify a failure to understand the signal of the other vessel, or that the vessel giving this signal deems it injudicious to comply with the whistle signal which it has received. This is the danger signal.

(e) When vessels are going in opposite directions and the danger signal is given, the engines of both vessels shall be stopped and the vessels backed until headway has been checked; and neither vessel shall again start ahead until the proper passing signals have been given, answered and understood.

(f) When vessels are going in the same direction and the danger signal is given by the forward vessel, the vessel astern shall not attempt to pass; but when the vessel ahead thinks the passing can safely be effected, it will signify its willingness by blowing the proper signal, in which case the overtaking vessel shall reply, and it may then proceed to pass the forward vessel.

(g) It is forbidden to use what is technically known as "cross signals," that is, answering one whistle with two, or two whistles with one.

RULE 83. The whistle signals provided for by the preceding Rule for vessels meeting or overtaking are never to be used except when vessels are in sight of each other and the course and position of each can be determined by sight in the day time, or by its signal lights at night. The signal given at bends in the Cut, as prescribed by Rule 56, shall not be construed as a passing signal. In fog, mist, or heavy rain storms, when vessels can not see each other, fog signals only shall be given.

RULE 84. When a self-propelled vessel is moving out from its dock or berth and other vessels are liable to pass from any direction toward it, such vessel shall sound a prolonged blast, but immediately after clearing its berth so as to be fully in sight, the vessel shall be governed by the usual steering and sailing rules.

RULE 85. *Fog Sound Signals:* A vessel under way in thick or foggy weather, or rain so dense as to obscure the vision, shall make fog sound signals as follows: (a) A self-propelled vessel under way, except when towing another vessel or being towed, shall sound, at intervals of not more than one minute, on whistle siren, or other mechanical sound-producing device, a prolonged blast; (b) a self-propelled vessel towing another vessel shall sound, at intervals of not more than one minute, on whistle, siren, or other mechanical sound-producing device, three blasts in succession, viz., one prolonged blast, followed by two short blasts; (c) a sailing vessel shall sound, at intervals of not more than one minute, by whistle or other sound-producing device, when on the starboard tack, one blast; when on the port tack, two blasts in succession; and when the wind is abaft the beam, three blasts in succession.

RULE 86. A vessel anchored or moored during thick or foggy weather, or rain so dense as to obscure the vision, shall, at intervals of not more than one minute, ring the ship's bell rapidly for about five seconds.

RULE 87. *Unnecessary Whistling:* Unnecessary sounding of steam whistle or siren is hereby prohibited within the waters of the Canal Zone.

RULE 88. *Masters to Take Precautions:* Nothing in these regulations shall exonerate any vessel, or the owner, agent, master, officer or crew thereof, from all the consequences of a neglect of any precaution which may be required by the ordinary practice of seamen or by the special circumstances of the case; and in obeying and construing these Rules due regard shall be had to all dangers of navigation and collision, and to any special circumstance which may render a departure from the above Rules necessary in order to avoid immediate danger.

CHAPTER VII

ACCIDENTS AND CLAIMS

See 7 F. Reg. 6627

RULE 89. *Responsibility for Damage to Vessel in Locks:* Under the provisions of paragraph four, section five, Panama Canal Act, The Panama Canal assumes responsibility for injury to vessels, cargo, or passengers due to accidents caused by the passage of the vessel through the locks. This responsibility is assumed from the time the first towing line is made fast on board before entrance and continues until the towing lines are cast off upon departure from the lock chamber. This responsibility, however, holds good only in case the vessel has complied with all requirements of these Rules, as well as the regulations issued by the Governor, and when motive power, steering gear, and all appurtenances controlling the ship function properly. The Panama Canal will not be responsible for damage to any protrusion beyond the side of the vessel, whether such protrusion is permanent or temporary in character.

RULE 90. *Settlement of Claims for Damage in Locks:* All claims for damages arising from an accident in the locks to a vessel or its cargo or passengers shall be adjusted by mutual agreement when practicable between The Panama Canal and the passenger, or the owner, agent or underwriter of the vessel or the cargo. In case of disagreement, suit may be brought by the claimant in the District Court of the Canal Zone against the Governor of The Panama Canal.

RULE 91. *Responsibility for Damage to Vessels in Canal Waters:* Except as provided in Rule 89, no claim against The Panama Canal for damages on account of injury to a vessel, or to its cargo or passengers, while in Canal Zone waters, and arising from the operation of the Canal, shall be allowed unless it shall be determined by the Governor that such injury was due to the negligence or want of care on the part of the agencies or employees of The Panama Canal.

RULE 92. *Method of Investigating Accidents:* In case a vessel, or its passengers or cargo, meets with an accident or sustains any damage which may be the basis of a claim against The Panama Canal, an investigation of such accident or damage shall be held by the Board of Local Inspectors, or any member thereof. The findings of the Board shall be effective only after approval by the Governor.

RULE 93. All matters pertaining to such an investigation shall be completed before the vessel concerned leaves Canal waters, and no claim will be considered unless the reason thereof has been laid before the Canal authorities prior to the vessel's sailing.

RULE 94. *Items to be Considered in Determining Money Value of Damages:* In determining the amount to be paid in settlement of claims for damage to a vessel for which The Panama Canal has been held liable, there may be included: (a) Actual or estimated cost of repairs; (b) charter hire actually lost by the owners or charter hire actually paid by the charterers of the vessel, depending upon the terms of the charter party, for the time the vessel is undergoing repairs; (c) maintenance of the vessel and wages of the crew, if such are shown to be actual additional expenses or losses incurred outside of the charter hire; (d) other expenses which are definitely and accurately shown to have been necessarily incurred by reason of the accident for which The Panama Canal is held liable. Agent's fees, commissions and other incidental expenses of a similar character will not be allowed; nor will items which are speculative, indefinite, indeterminable, or matters of conjecture.

RULE 95. *Evidence:* If a vessel is not operated under charter, but by the owner personally, evidence shall be secured, if available, as to the sum for which vessels of the same size and class can be chartered in the market. If unable to determine such charter value, the value of the use of such vessel to its owner in the business in which it was engaged at the time of the injury shall be used as a basis for estimating the damage for the vessel's detention, and the books of the owner showing the vessel's earnings about the time of the accident shall be considered as evidence of probable earnings during the time of detention. If the books are unavailable, such other evidence shall be furnished as may be required by the Auditor of The Panama Canal. The Auditor of The Panama Canal shall be furnished with such vouchers, receipts or other evidence as may be required by him in support of any item of a claim.

RULE 96. *Responsibility for Demurrage and Delays:* The Panama Canal will not be responsible, nor consider any claims, for demurrage or delays due to landslides, or other natural causes; necessary construction or maintenance work on Canal locks, terminals, or equipment; obstructions due to accidents; time necessary for admeasurement; congestion of traffic; or for any reason except those specifically set forth in these Rules.

RULE 97. *The Canal Authorities to Take Charge of Wrecked or Damaged Vessels:* Should a vessel go aground or be wrecked in Canal waters, or be so damaged by accident as to render it liable to become an obstruction in the Canal Zone waters, the Canal authorities shall have the right to supervise and direct all operations that may be necessary to float the vessel, or clear the wreckage, or move the damaged vessel to a safe locality. The Canal authorities shall have the right to take such action, when necessary, without waiting for permission from the owner or agent, and shall have the right to require the master and all under him to place the vessel and every appliance on board at the disposal of the Canal authorities, without cost to the Canal. The expenses necessarily incurred by The Panama Canal in carrying out the provisions of this Rule shall be a proper charge against the vessel when such vessel has been found responsible for the accident.

RULE 98. *Penalty for Injuring the Canal:* The Act of Congress approved August 21, 1916, contains the following provision:

> "It shall be unlawful for any person, by any means or in any way to injure or obstruct or attempt to injure or obstruct, any part of the Panama Canal or the locks thereof or the approaches thereto. Any person violating this provision shall be guilty of a felony, and on conviction in the district court of the Canal Zone, shall be punished by a fine not exceeding $10,000 or by imprisonment not exceeding 20 years, or both, in the discretion of the court. If the act shall cause the death of any person within a year and a day thereafter, the person so convicted shall be guilty of murder and shall be punished accordingly."

RULE 99. *Liability of Vessels for Damage to Canal Structures and Equipment:* A vessel shall be held liable for all damage to any structures pertaining to The Panama Canal or its plant or equipment, when such damage is due to negligent or improper handling of the vessel, to defects of equipment of vessel, or to disregard of these Rules or of the regulations issued by the Governor. No vessel shall make fast to or run any lines to any marker, buoy, beacon, or other aid to navigation; and a vessel shall so navigate as not to strike such aids in passing. Damage to aids to navigation under these conditions shall render the vessel liable for damages under this Rule.

RULE 100. Vessels while within Canal Zone waters shall take necessary precautions to avoid the issue of sparks or excessive smoke, and vessels shall be held liable for damage due to issue of sparks or excessive smoke.

RULE 101. In case of damage to any of the Canal structures or equipment by a vessel under the conditions specified in Rules 99 and 100, the matter shall be adjusted by mutual agreement, when practicable, between The Panama Canal and the owner, agent, or underwriters of the vessel; and in case of disagreement the vessel will be proceeded against in the District Court of the Canal Zone.

CHAPTER VIII

QUARANTINE

RULE 102. *Division of Quarantine:* The Division of Quarantine of the Health Department shall be under the jurisdiction of the Chief Health Officer of The Panama Canal and shall be administered by a Chief Quarantine Officer and quarantine officers appointed by the Governor. The Division of Quarantine is hereby charged with the enforcement of quarantine rules and regulations in Canal Zone waters and in the harbors of Panama and Colon, Republic of Panama, and on vessels present in those waters and harbors. It is hereby authorized to adopt such measures in regard to vessels, crews, passengers and cargoes, as may be necessary to protect the Canal Zone and the cities of Colon and Panama, Republic of Panama,

from quarantinable diseases of men and animals; to grant pratique; to certify bills of health; to carry out, at the request of the interest controlling a vessel, any sanitary measures necessary to put the vessel in such condition that it may leave port with a clean bill of health; and to perform such other duties as may be assigned to it by proper authority.

RULE 103. *Penalty:* The penalty for violating any of the quarantine rules herein established shall be a fine not exceeding five hundred dollars ($500.00) or imprisonment in jail not exceeding ninety (90) days, or both such fine and imprisonment.

RULE 104. *Arriving Vessels to be in Quarantine:* All vessels, together with their crews, passengers and cargo, arriving at the ports of the Canal Zone, or of the cities of Panama and Colon, Republic of Panama, except vessels clearing from ports of the Republic of Panama which are known by the quarantine officer to be free from quarantinable disease, shall be in quarantine until released therefrom by the quarantine officer. A yellow flag shall be flown at the foremast of a vessel in quarantine until permission to lower it is granted by the quarantine officer.

RULE 105. *Restrictions while Vessels are in Quarantine:* Except with the permission of the Quarantine Officer no floating craft shall be brought within 200 yards of any vessel that is in quarantine; no vessel in quarantine shall be docked; no person or article shall be allowed either to go aboard or to leave a vessel in quarantine. Any person or vessel violating this Rule shall be subject to such quarantine measures as the Quarantine Officer may direct; and, in addition, any person violating the rule shall be liable to the penalty prescribed by Rule 103.

RULE 106. *Duties of Masters at Quarantine Inspection:* When a vessel in quarantine is boarded by the quarantine officer, the master thereof shall submit to the quarantine officer such lists, statements, certificates and other papers as may be required by regulations prescribed by the Governor. The master shall arrange for such inspection of the vessel, cargo, crew and passengers as may be required by the quarantine officer, and shall comply with all instructions from the quarantine officer regarding detention of crew and passengers, disinfection, fumigation, and other sanitary matters.

RULE 107. *Sworn Statement in Lieu of Complete Inspection:* At the discretion of the quarantine officer, a written statement, attested under oath by the master of the vessel and by the surgeon, if any, may be accepted in lieu of the complete quarantine inspection or of any part thereof.

RULE 108. *Pratique:* The quarantine inspection having been completed, the quarantine officer shall grant either free pratique or provisional pratique, or shall detain the vessel in quarantine. Free pratique authorizes the vessel to transit the Canal, to dock, to communicate with the shore, to take on and discharge passengers and cargo, and to do such other things as are legal and customary. Provisional pratique authorizes the vessel to do, or requires it to abstain from doing, certain things which are specifically set forth in writing by the quarantine officer. Failure to conform to the conditions of the provisional pratique shall render it null and void and the vessel shall at once return to its previous status.

RULE 109. *Pratique Without Inspection for Naval Vessels:* Vessels of the Naval service of any nation may, at the discretion of the Chief Quarantine officer, be granted free pratique without quarantine inspection under the following conditions: The Commanding Officer of the vessel or vessels shall address a request for such pratique to the Chief Quarantine Officer in time to have such request reach that officer between the hours of 8 A. M. and 4 P. M. on the day before pratique is desired; the request shall contain a statement that there is no quarantinable disease aboard, and shall give the names of the ports visited within the last 10 days, the complement of the vessel or vessels, and the condition of health of such complement; the Commanding Officer shall file with the quarantine officer of the port, within 12 hours after entering Canal Zone waters, a certificate, signed by the senior Medical Officer and approved by the Commanding Officer, embodying the information given in the request. Pratique shall not be considered as granted until reply to that effect has been received from the Chief Quarantine Officer by the Commanding Officer of the vessel or vessels concerned.

RULE 110. *Pratique Without Inspection for Vessels Other Than Naval Vessels:* At the discretion of the Chief Quarantine Officer, provisional pratique may be granted to vessels other than naval vessels, under the following conditions: The master of the vessel shall address a request for such pratique to the Chief Quarantine Officer in time to have such request reach that officer between the hours of 8 A. M. and 4 P. M. on the day before pratique is desired; the request shall give the names of the ports visited in the last 10 days, and shall contain a statement that there is no sickness on board and that the vessel intends to transit the Canal without taking on or landing either cargo or persons. Such provisional pratique shall not be considered as granted until reply to that effect has been received from the Chief Quarantine Officer by the master of the vessel concerned.

RULE 111. *Certificate of Pratique:* Before a vessel shall be allowed to proceed through the Panama Canal or to leave a port of the Canal Zone, the quarantine officer shall furnish to the master of the vessel a Certificate of Pratique, or its equivalent in the form of a radio message.

RULE 112. *Detention of Vessels in Quarantine:* A vessel may be detained in quarantine under the following conditions: If there is quarantinable disease on board, or if there has been such disease on board during the voyage; if the quarantine officer believes the vessel or its crew, passengers or cargo, to be infected with quarantinable disease; if the vessel has received on board any person or article from another vessel subject to quarantine; if the quarantine officer considers that the conditions on the vessel in any other respects are such as to endanger the health of persons or animals in the Canal Zone or the cities of Panama and Colon, Republic of Panama. The period of detention in quarantine shall be that which the Chief Quarantine Officer considers necessary.

RULE 113. *Detention of Persons and Cargo in Quarantine:* The quarantine officer is hereby authorized to detain in quarantine, either on board the vessel or in a quarantine station, any or all of the crew and passengers of a vessel, and any other person whom he may consider to have been exposed to infection with quarantinable disease; and also to detain in quarantine, either on board the vessel or in some other place designated by him, any or all cargo which, in his opinion, is infected with quarantinable disease.

RULE 114. *Removal of Cargo:* The quarantine officer is hereby authorized to cause the removal of any or all cargo from a vessel when he considers such removal necessary to effect fumigation or disinfection of either the cargo or the vessel.

RULE 115. *Quarantine Stations:* There will be maintained within the Canal Zone one or more quarantine stations which shall be under the jurisdiction of the Quarantine Division. No person or article shall be allowed to enter a quarantine station without authority of the quarantine officer, and no person or article which has been detained in a quarantine station shall depart or be removed therefrom without authority of the quarantine officer.

RULE 116. *Quarantinable Diseases:* For the purpose of these Rules the quarantinable diseases of persons are cholera, yellow fever, smallpox, typhus fever, leprosy, plague and anthrax, and the quarantinable diseases of animals are glanders, anthrax, tuberculosis, foot and mouth disease, contagious pleuro-pneumonia, rinderpest and surra, together with such other diseases of men and animals as from time to time may be declared to be quarantinable by the Governor.

RULE 117. *Protection Againt Rodents:* Vessels from any port, except from ports of the Republic of Panama which are known by the quarantine officer to be free from quarantinable disease, when lying at wharves in Canal Zone waters or in the ports of Panama and Colon, Republic of Panama, shall exercise the following precautions to prevent the coming ashore of rats and other rodents: The vessel shall be breasted off in such a manner that no part of it is nearer than four feet to the wharf or to any other vessel; immediately after docking, rat-guards in good condition and of design approved by the Chief Quarantine Officer, shall be placed on all mooring lines leading from the vessel to the wharf or to another vessel, and shall be secured in such manner as to prevent rats from passing along the lines, and shall be so located as not to overhang the wharf or another vessel or to be nearer thereto than three feet; such rat-guards shall be maintained on the lines as long as the vessel remains at the wharf; all freight gangways, save-alls, catch-alls, cargo

chutes, hose and other gear which might serve as routes of passage for rats from the vessel shall, at all times when not in use, be hoisted in such manner as to render passage of rats impossible, provided that such gear may remain unhoisted for short intervals during the daytime if watchmen are stationed for the purpose of preventing rats from leaving the vessel along this gear; all passenger gangways shall be well lighted and when it is necessary to leave them down after nightfall they shall be continuously guarded by watchmen in such a manner as to prevent rats from leaving the vessel.

RULE 118. *Fumigation Before Entering Drydock:* No vessel shall be placed in a drydock without a fumigation for the destruction of rodents having been performed subsequent to arrival of the vessel in Panama Canal waters, unless the Chief Quarantine Officer shall certify that such fumigation is unnecessary.

RULE 119. *Quarantine of Aircraft:* The Governor is hereby authorized to prescribe regulations concerning quarantine inspection and detention of aircraft entering the Canal Zone and the cities of Panama and Colon, Republic of Panama, and of persons and cargo carried thereon.

CHAPTER IX

EXCLUSION OF UNDESIRABLES

RULE 120. *Undesirable Persons:* The following classes of persons are hereby forbidden to enter the Canal Zone and the Governor is hereby authorized at his discretion to deport any such person when found in the Canal Zone: The insane or persons who have been insane within five years previous to their attempted entry into the Canal Zone, imbeciles or feeble-minded persons, epileptics, persons suffering from a loathsome or dangerous contagious disease, criminals, those who have been convicted of felony, paupers or professional beggars, persons of notoriously bad character, anarchists, those whose purpose it is to incite insurrection, and any other persons whose presence, in the judgment of the Governor, would be a menace to the public health or welfare of the Canal Zone, or whose presence would tend to create public disorder or obstruct the operation or maintenance of the Canal, or who are liable to become a public charge.

Superseded by
H. 5865
1940 CFR 143

RULE 121. *Penalty:* The penalty for the violation of any of the rules herein established for the exclusion of undesirables shall be a fine not to exceed five hundred dollars ($500.00) or imprisonment not to exceed one (1) year, or both such fine and imprisonment.

RULE 122. *Liability of Vessels Bringing Undesirable Persons:* The owner or interest controlling a vessel bringing into the Canal Zone a person excluded by Rule 120 shall return such excluded person to his port of embarkation, and when required by the Canal authorities to do so, such owner or interest shall return a certificate to said authorities from the proper officials of the port of embarkation stating that the said excluded person has been landed at said port.

RULE 123. *Cost of Excluding or Deporting Persons:* The cost of excluding or deporting persons listed in Rule 120 shall be a charge against the person or interest responsible for bringing the undesirable person into the Canal Zone. Such cost shall include expenses incident to detention, maintenance, transportation, and transportation of baggage, as well as the actual cost of deportation. Clearance may be withheld from the vessel until such costs have been paid, or their payment has been secured.

RULE 124. In cases of deportation in which no person or interest can be held responsible for the cost hereunder, such cost will be paid from Canal funds.

RULE 125. *Detention:* Any excluded person awaiting deportation, or any person held for the determination of his right of entry into the Canal Zone, may, when necessary, be detained by the Canal authorities at such place as may be designated by the Governor.

RULE 126. The master of a vessel owned or controlled by the same interests as a vessel which has brought to the Canal Zone any person subject to exclusion by Rule 120 shall be required to receive such person on board at such time prior to the date of sailing of his vessel as may be decided upon by the Canal authorities.

RULE 127. *Passage Through the Canal Zone:* Any person excluded by Rule 120, who may desire to enter the Canal Zone in order to reach his final destination, may be allowed by the Canal authorities to make such transit under such regulations as may be prescribed by the Governor, provided the person or interest controlling the vessel upon which such person arrives at the Canal Zone agrees in writing that if such person is rejected at his final destination and returned to the Canal Zone, his deportation therefrom shall be at the expense of the owner or interest controlling the vessel.

RULE 128. *Duty of Vessels to Prevent Landing of Undesirables:* It shall be the duty of the owner, agent, and officers of any vessel bringing to the Canal Zone any person excluded under Rule 120, to adopt the necessary precautions to prevent the landing of any such person at any time or place, other than as permitted and designated by the Canal authorities; and any such owner, agent, or officer who shall land, or, through negligence, permit to land, any person contrary to the provisions of these Rules, shall be subject to the penalty prescribed by Rule 121.

CHAPTER X

EXCLUSION OF CHINESE

RULE 129. *Purpose:* The purpose of the Rules concerning the exclusion of Chinese is the preventing of entry through the Canal Zone into the Republic of Panama of Chinese persons who are forbidden by the laws of the Republic of Panama to enter the territory of that country.

RULE 130. *Chinese Not Allowed to Enter the Canal Zone:* No Chinese person shall be allowed to enter into or remain in the Canal Zone, except as provided in these Rules; and any Chinese person found in the Canal Zone in contravention of the provisions of these Rules shall be punished as provided in Rule 132. The word "Chinese" as used herein shall mean a person of the Chinese race without regard to the nationality of such person.

RULE 131. *Exceptions:* Rule 130 shall not apply to the following: Diplomatic and Consular agents of the Chinese Government, upon showing proof of their official character; Chinese persons legally residents of the Canal Zone or of the Republic of Panama; domestic servants employed by personnel of the United States Army and Navy stationed in the Canal Zone, when such employment has the approval of the Governor; those whose services have been contracted for by the United States, The Panama Canal, or the Panama Railroad Company; any Chinese person coming into the Canal Zone by specific authority of the Governor.

RULE 132. *Penalty:* The penalty for the violation of any of the Rules herein established for the exclusion of Chinese shall be a fine not to exceed five hundred dollars ($500.00) or imprisonment not to exceed one (1) year, or both such fine and imprisonment.

RULE 133. *Liability of Vessels Bringing Chinese Persons:* The owner or interest controlling a vessel bringing into the Canal Zone a Chinese person excluded by Rule 130 shall return such excluded person to his port of embarkation, and, when required by the Canal authorities to do so, such owner or interest shall return a certificate to said authorities from the proper officials of the port of embarkation certifying that the said excluded person has been landed at said port. When a vessel, having Chinese persons on board, comes within the Canal Zone in distress or under stress of weather, such Chinese persons may be permitted to land when authorized by the Governor, but they must depart from the Canal Zone with the vessel on its leaving the port.

RULE 134. *Cost of Excluding or Deporting Chinese Persons:* The cost of excluding or deporting Chinese persons excluded by Rule 130 shall be a charge against the person or interest responsible for bringing such Chinese persons into the Canal Zone. Such costs shall include expenses incident to detention, maintenance, transportation and transportation of baggage, as well as actual cost of deportation. Clearance may be withheld from the vessel until such costs have been paid or their payment has been secured.

RULE 135. In case of deportation of Chinese persons in which no person or interest can be held responsible for the cost thereof, such cost will be paid from the Canal funds.

RULE 136. *Detention:* Any Chinese person awaiting deportation or held for the determination of his right of entry into the Canal Zone or the Republic of Panama may, when necessary, be detained by the Canal authorities at such place as may be designated by the Governor.

RULE 137. The master of a vessel owned or controlled by the same interests as a vessel which has brought to the Canal Zone any Chinese person subject to exclusion by Rule 130 shall be required to receive such Chinese person on board at such time prior to the date of sailing of his vessel as may be decided upon by the Canal authorities.

RULE 138. *Descriptive List:* The master of a vessel from a foreign port with one or more Chinese persons on board, stopping at a port in the Canal Zone, or transiting the Panama Canal, shall deliver to the designated official of The Panama Canal a descriptive list of all Chinese persons on board his vessel at the time of its arrival in the Canal Zone. Such list shall contain the names of all Chinese persons on board as shown by the ship's papers, and shall be subscribed and sworn to by the master.

RULE 139. *Temporary Entry into the Canal Zone for Transit:* Chinese persons arriving from foreign ports, who desire to enter the Canal Zone in transit to other countries, may be allowed to make entry under such regulations as may be established by the Governor, but such transients who are destined for the Republic of Panama shall not be released in the Canal Zone unless the consent of the authorities of the Republic of Panama is first obtained for their entry into the said Republic.

RULE 140. *Entry under Bond:* Chinese persons entering the Canal Zone under Rule 139, and Chinese members of a vessel's crew discharged in the Canal Zone under authority of the Governor, may remain temporarily in the Canal Zone until a reshipment is obtained by them, provided a satisfactory bond, in a sum to be fixed by the Canal authorities, but not to exceed five hundred dollars ($500.00), is executed by or in behalf of such Chinese person or persons, and conditioned that the principal in the bond, in good faith will obtain a reshipment and leave the Canal Zone at the date fixed by the Canal authorities; and said bond shall be forfeited for the full amount thereof by judgment in the District Court of the Canal Zone, should the principal in said bond fail to comply with any of the conditions thereof.

RULE 141. *Duty of Vessels to Prevent Landing of Chinese Persons:* It shall be the duty of the owner, agent and officers of any vessels bringing to the Canal Zone any Chinese person excluded under Rule 130, to adopt the necessary precautions to prevent the landing of such persons at any time or place other than as permitted and designated by the Canal authorities; and any such owner, agent or officer who shall land, or through negligence permit to land, any Chinese person contrary to the provisions of these Rules, shall be subject to the penalty prescribed by Rule 132. Every person who aids or abets in the violation of this order shall be equally guilty with the principal.

CHAPTER XI

CUSTOMS ADMINISTRATION

RULE 142. *Customs District:* There is hereby established a customs district, which shall comprise all lands and waters within the jurisdiction of the United States in the Canal Zone and the maritime waters contiguous thereto.

RULE 143. *Ports of Entry:* There shall be two ports of entry in the Canal Zone, viz., Balboa and Cristobal, at which vessels may be entered or cleared and articles imported or exported.

RULE 144. *Customs Bureau:* There shall be a Bureau of Customs in the Division of Civil Affairs, which, under the Executive Secretary, shall enforce the customs rules and regulations of the Canal Zone, and have exclusive control for customs purposes over all articles, including passengers' baggage, introduced into the Canal Zone, until such articles are released by a customs officer. The Bureau of Customs shall consist of such customs officers as may be appointed by the Governor.

RULE 145. *Power of Search, Seizure and Arrest:* General powers of search, seizure and arrest are hereby conferred upon customs officers, including deputy

shipping commissioners and boarding officers when performing customs duties. In the exercise of these powers customs officers are authorized to enter any buildings, other than dwelling houses, to stop vessels and vehicles, and to search vessels, vehicles and their contents; and to stop and search persons and any packages carried by them. Such right of entry, stopping, search, seizure and arrest shall be exercised only when there are reasonable grounds for suspecting violation of the customs rules or of the laws of the United States or the Canal Zone.

RULE 146. *Smuggling:* Smuggling shall be unlawful. Smuggling shall be construed to mean the entry or attempted entry of any articles without submitting them to a customs officer for examination, with intent to defraud the customs revenues of the Republic of Panama; or the violation or attempted violation of the rules and regulations governing the free entry of articles into the Canal Zone.

RULE 147. *False or Fraudulent Invoice:* It shall be unlawful to pass or attempt to pass any false, forged or fraudulent invoice or bill or other paper for the purpose of violating the customs rules herein established or to aid or abet in the same.

RULE 148. *Seizure of Articles:* Any article brought into or obtained in the Canal Zone in violation of Rules 146 and 147 may be seized and held by a customs officer; and, unless the duty is paid or waived or the articles are proved to be entitled to free entry within a period of 30 days from date of seizure, such articles may be forfeited. Articles forfeited for violation or attempted violation of the customs laws of the Republic of Panama shall be delivered to the proper authorities of that Government.

RULE 149. *Articles not Manifested*: If any vessel arriving at the Canal Zone from a foreign port is found to have on board merchandise not manifested, the master of such vessel shall be liable to a penalty equal in amount to the value of the merchandise not manifested, and all such merchandise belonging to or consigned to or for the officers or crew of the vessel, shall be forfeited, provided, however, that such penalty shall not be imposed if it is made to appear to the customs officer, or to the court in which the trial is held, that no part of the cargo has been unloaded, except as accounted for in the master's report, and that the errors and omissions in the manifest were made without fraud or collusion; and in such cases the master may be allowed to correct his manifest by means of a post-entry. A permit shall not be granted to unload any such merchandise, so omitted from the manifest, before post-entry, or addition to report or manifest has been made.

RULE 150. *Non-listed Ship's Stores*: If sea stores are found on board of a vessel arriving at the Canal Zone from a foreign port, which are not specified in the list furnished the boarding officer, or if a greater quantity of such articles is found than that specified in such list, or if any of such articles are landed without a permit being first obtained from the customs officer for that purpose, all of such articles omitted from the list or manifest, or so landed, shall be seized and forfeited, and the master of the vessel shall be liable to a penalty treble the value of the articles so omitted or landed.

RULE 151. *Fees:* Whenever a customs officer of the Canal Zone shall certify an invoice, landing certificate, or other similar document, or shall register a marine note of protest, or shall perform any notarial services, he shall be authorized to collect a fee equivalent to the fee prescribed by the United States consular regulations for the same act or service when performed by consular officials.

RULE 152. *Shipping Commissioner:* Section 9 of the Act of Congress of August 21, 1916, relating to merchant seamen, provides that the laws relating to seamen of vessels of the United States on foreign voyages shall apply to seamen of all vessels of the United States at the Canal Zone, whether such vessels be registered or enrolled and licensed, and the powers in respect to such seamen of such vessels bestowed by law upon consular officers of the United States in foreign ports and upon shipping commissioners in ports of the United States are bestowed upon the shipping commissioner and deputy shipping commissioners of the Canal Zone. Canal Zone customs inspectors are hereby authorized to act as deputy shipping commissioners for the purpose of carrying out the provisions of this Act.

RULE 153. *Shipment of Articles from the Canal Zone to the United States:* The officers of the Bureau of Customs are authorized to certify invoices covering shipments of articles from the Canal Zone to the United States. In the performance

of this duty they shall be governed by the United States consular regulations, and by the circular instructions concerning the certification of invoices issued to consuls of the United States, in so far as they are applicable, provided, however, that any special instructions heretofore issued, or which may be issued in the future, by the United States Treasury Department, concerning certification of invoices in the Canal Zone, shall be complied with.

RULE 154. *Penalty:* Except where otherwise prescribed in this Chapter, the penalty for violating any of the customs rules herein established shall be a fine not exceeding five hundred dollars ($500.00) or imprisonment in jail not exceeding ninety (90) days, or both such fine and imprisonment.

CHAPTER XII

VESSEL INSPECTION SERVICE

RULE 155. *Board of Local Inspectors:* The Governor is hereby authorized to appoint three persons as a Board of Local Inspectors.

RULE 156. *Assistance of Owners and Masters:* Owners and masters shall be required to assist the Board of Local Inspectors in its investigations and inspections, and to put machinery in operation when necessary to demonstrate the efficiency of the machinery, equipment and appliances.

RULE 157. *Licensing of Officers of Vessels:* Under the direction of the Governor, the Board of Local Inspectors shall recommend the classification of Masters, Mates, Engineers and Pilots of steam and motor vessels navigating the waters of the Canal Zone; and upon such recommendation licenses shall be issued by the Marine Superintendent, or such other officer of The Panama Canal as may be designated by the Governor.

RULE 158. Licenses shall be granted for a term of three years, but may be suspended or revoked upon satisfactory proof of negligence, unskillfulness, intemperance, or other improper conduct. Such suspension or revocation shall be made only after a hearing by the Board of Local Inspectors, and by approval of the Marine Superintendent, or such other officer of The Panama Canal as may be designated by the Governor.

RULE 159. Licenses for Masters, Mates, Engineers and Pilots may be issued only to persons who are citizens of the United States or the Republic of Panama, provided, however, that persons now holding licenses for these positions may have such licenses renewed from time to time, upon recommendation of the Board of Local Inspectors.

RULE 160. *Inspection of Hulls, Boilers, Equipment, and Passenger Accommodations:* All vessels navigating the waters of the Canal Zone, except public vessels of all nations and private vessels merely transiting the Canal, shall be subject to an annual inspection of hulls, boilers, machinery, equipment, and passenger accommodations; and the Governor is hereby authorized to prescribe regulations concerning such inspection, provided that such regulations shall, as nearly as practicable, conform to the laws and regulations governing the steamboat inspection service of the United States.

RULE 161. A vessel merely transiting the Canal may have inspection made by the Board of Local Inspectors, if requested by the owner, agent, or master of such vessel.

RULE 162. A foreign vessel of a country which has inspection laws approximating those of the United States, having an unexpired certificate of inspection duly issued by the authorities of the said country, shall not be subjected to an inspection other than that necessary to determine if the vessel, boilers, and life-saving equipment are as stated in the certificate of inspection; but no such certificate of inspection shall be accepted as evidence of lawful inspection unless like privileges are granted to vessels of the United States under the laws of the country to which such vessel belongs.

RULE 163. *Issuing of Certificate:* When the Board of Local Inspectors approves a vessel and its equipment, a certificate of inspection, in triplicate, will be issued by the Canal authorities, two copies of which shall be displayed in conspicuous places in the vessel where they are most likely to be observed by passengers and others, and there kept at all times framed under glass.

RULE 164. Should the Board of Local Inspectors not approve the vessel or its equipment, a certificate of inspection will be refused, and the Board of Local Inspectors will make a statement in writing giving the reason for failure to approve, filing such statement in the records of the Board, and giving a copy thereof to the owner, agent, or master of the vessel.

RULE 165. *Appeal from Action of the Board of Local Inspectors:* An applicant for a license as Master, Mate, Engineer or Pilot, to whom the Board of Local Inspectors has refused to grant such license, or the owner, agent, or master of a vessel for which the Board has refused to grant a certificate of inspection, has the right of appeal to the Marine Superintendent of The Panama Canal, or such other officer of The Panama Canal as may be designated by the Governor. Such appeal must be entered within 10 days after the final action of the Board. The Marine Superintendent, or such other officer of The Panama Canal as may be designated by the Governor, may modify or set aside the action of the Board of Local Inspectors, in which case he shall certify his ruling to the Board for its observance.

RULE 166. *Penalty:* Any vessel, other than those excepted in Rule 160, that navigates the waters of the Canal Zone without having an unexpired certificate of inspection issued by the Canal authorities or by the steamboat inspection service of the United States, or an unexpired certificate accepted by the Canal authorities under Rule 162, shall be subject to a fine not exceeding one thousand dollars ($1,000.00); and whenever any passenger is received on board a vessel not having certified copies of the certificate of inspection placed and kept as required by Rule 163, or who shall receive passengers on board in excess of the number authorized by said certificate of inspection, such vessel shall be liable to a fine not exceeding one hundred dollars ($100.00) for each passenger so received. Fines shall be recovered in the District Court of the Canal Zone, and the amount so recovered shall be a lien upon such vessel, and it may be seized and sold to satisfy same, as well as the costs of the court proceedings.

RULE 167. *Revocation of Certificate:* In case a vessel holding an unexpired certificate issued by the Canal authorities shall change its condition as to hull, boilers, machinery, equipment, or accommodations for passengers in such manner as not to conform to the regulations under which such certificate was issued, the Board of Local Inspectors is authorized to make an inspection and to recommend revocation of the certificate of inspection, and upon approval of such recommendation by the Marine Superintendent, or such other officer of The Panama Canal as may be designated by the Governor, a notice of revocation will be issued to the owner, agent, or master of the vessel; and after such notice of revocation the navigating of Canal Zone waters by such vessel shall subject it to the penalty prescribed by Rule 166.

RULE 168. *Small Vessels Engaged in Local Navigation in Canal Zone Waters:* Other than public vessels of the United States or of the Republic of Panama, small vessels propelled in whole or in part by machinery shall be required to be registered, certificated and numbered, and to display the numbers assigned in a conspicuous place in prescribed form. Such vessels shall not be operated except by an operator holding a license to operate, issued after examination by the Board of Local Inspectors, and approval of such examination by the Marine Superintendent, or such other officer of The Panama Canal as may be designated by the Governor.

RULE 169. Small vessels not propelled in whole or in part by machinery shall be registered and numbered, and when numbers have been assigned they shall be displayed in a conspicuous place in prescribed form.

RULE 170. Small vessels, before carrying passengers for hire in the Canal Zone waters, shall obtain a certificate from the Canal authorities to engage in this business, and such certificate shall specify the number of passengers and life preservers and the fire-fighting apparatus which the vessel must carry. Such vessels shall be subject to annual inspection, and the certificate referred to will be granted for one year only. Small vessels carrying passengers without having first obtained a certificate from the Canal authorities, or carrying passengers in excess of the number authorized by such certificate, shall be liable to a fine of not exceeding one hundred dollars ($100.00) for each passenger so carried.

CHAPTER XIII

RADIO COMMUNICATION

RULE 171. *Radio Equipment Required:* It shall be unlawful for any ocean-going vessel carrying 50 or more persons, including passengers and crew, to leave or attempt to leave any port of the Canal Zone unless such vessel shall be equipped with an efficient apparatus for radio communication, in good working order, in charge of a person skilled in the use of such apparatus, which apparatus shall be capable of transmitting and receiving messages for a distance of at least one hundred miles, night or day. This requirement shall not apply to vessels merely transiting the Canal or to vessels plying between Canal Zone ports and ports less than two hundred miles therefrom.

Amended
Superseded by
No. 6715
(C.F.R.)

RULE 172. *Penalty:* Any vessel leaving or attempting to leave a Canal Zone port not equipped as required by the preceding Rule shall be liable to a fine not to exceed five thousand dollars ($5,000.00), and each such departure or attempted departure shall constitute a separate offense. Fines shall be recovered in the District Court of the Canal Zone, and the amount so recovered shall be a lien upon such vessel, and it may be seized and sold to satisfy same, as well as all costs of the court proceedings.

RULE 173. *Power, Testing and Tuning:* A vessel within the 15-mile limit of the Canal Zone shall transmit only with low power, not exceeding ½ K. W. Testing and tuning shall not be permitted within the 15-mile limit except after obtaining permission from Balboa Radio Station.

RULE 174. *Messages between Ships:* All messages between vessels in the Canal Zone and vessels at sea shall be forwarded through the nearest shore station. Control of radio communication shall be entirely in the hands of the radio shore stations.

RULE 175. *Operator on Watch:* All vessels fitted with radio, after leaving the terminal harbor to pass through the Canal, shall keep an operator on watch until the farther terminal harbor has been reached.

RULE 176. *Canal Business:* Messages relating to the vessel's movements and Canal business shall take precedence over all commercial messages. The pilot on a vessel passing through the Canal shall have the right to free use of the vessel's radio for the transaction of Canal business.

CHAPTER XIV

MISCELLANEOUS

RULE 177. *Vessel Wastes:* No vessel shall discharge or throw into the waters of the Canal Zone any ballast, ashes, cinders, boxes, barrels, straw, paper, or other solid matter; nor discharge heavy slops, engine or fire room bilge water, oil, or any other matter that will tend to deface or make the waters of the Canal Zone insanitary. This requirement shall not apply to water closet chutes, nor to the water used in cooking or in cleaning table ware. Before arrival from the sea at either of the terminal ports, vessels should get rid of all waste forbidden to be discharged in the Canal Zone waters.

RULE 178. No vessel lying at a wharf in the Canal Zone shall place any wastes upon such wharf, but garbage may be placed in the covered galvanized iron cans supplied upon the wharf for that purpose by the Canal authorities. Vessels desiring to remove dry wastes, such as boxes, trash, paper, etc., should make request to the Canal authorities, who will place a dump car alongside to receive such matter. These services are chargeable to the vessel.

RULE 179. A vessel anchored in Canal Zone waters for a considerable length of time may get rid of vessel wastes by requesting the Canal authorities to place a garbage scow alongside. This service is chargeable to the vessel.

RULE 180. *Nets and Other Obstructions:* No fishing nets or other obstructions shall be placed in any of the navigable waters of the Canal Zone.

CALVIN COOLIDGE

THE WHITE HOUSE,
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